

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JULY 14, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**WHEELS FINANCIAL GROUP, LLC vs. ANTONIO CALLAHAN
Case No. CL25-07497**

Plaintiff's Motion to Set Aside Dismissal Pursuant to CCP §664.6

TENTATIVE RULING

Plaintiff's motion to set aside dismissal pursuant to CCP Section 664.6 is denied without prejudice. Plaintiff has not submitted a declaration providing evidence that Defendant has breached the settlement agreement. While the motion references a "Noel Dec.", it appears that the "Noel Dec." was not included.

Further, regarding future motions in this case, the Court notes as follows. Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

In the present case, Defendant has not filed any responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail on Defendant. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

As to future motions, Plaintiff is directed to effect service of the motion papers in the manner required for service of summons and complaint, with such service completed at least 16 court days prior to the hearing date.

WELLS FARGO BANK, N.A. vs. CAROLYN VERNER
Case No. CL26-00208

Plaintiff's Motion to Deem Matters Admitted

TENTATIVE RULING

Plaintiff's unopposed motion to deem matters admitted is GRANTED. Each of the requests for admissions is deemed to be admitted.

JAIME ANDUJO vs. GENERAL MOTORS, LLC
Case No. CU23-00155

Plaintiff's Motion for Attorneys' Fees

TENTATIVE RULING

On the Court's own motion, the hearing on Plaintiff's motion for attorney fees is continued to July 24, 2026.

JESSE MORRIS vs. TREVOR BARLETT; ET AL.
Case No. CU23-05798

Motion for Confirmation of Referee's Final Report

TENTATIVE RULING

Parties to appear.

The referee's final report calculates the amount of rent collected from the property by multiplying 70 months with the monthly rent of \$1,825, which should equal \$127,750, but somehow concludes that the total is \$129,500. Additionally, the report assumes that Plaintiff has already paid the attorneys' fees out of pocket, but no evidence has been presented to establish that the fees have actually been paid.
